

ORDINANCE NO. 78

AN ORDINANCE PROHIBITING THE USE, PURCHASE, POSSESSION, DISTRIBUTION, SALE OR OFFERING FOR SALE OF SYNTHETIC COCAINE, OTHER SYNTHETIC PRODUCTS, OR KRATOM; PROHIBITED

BE IT ORDAINED BY THE MAYOR AND BOARD OF ALDERMEN OF THE TOWN OF DECATUR, MISSISSIPPI AS FOLLOWS:

SECTION I.

(a) No person shall use, possess, purchase, distribute, manufacture, sell or attempt to use, possess, purchase, distribute or sale or publicly display for sale any one or more of the following within the city:

(1) Products sold as "bath salts" under the trade names: Ivory wave, bliss, white lightning, hurricane Charlie, super coke, cloud 9, peevee, ocean magic, white dove, and other trade names, and/or containing one or more of the following compounds or chemicals:

- a. u3,4-Mehtylene-dioxymethcathinone (Methylone);
- b. u3,4-Methyenedioxy-pyrovalerone (MDPV);
- c. u4-Methylmeth-cathinone (Mephedrone);
- d. u4-Methoxymeth-cathinone;
- e. u4-Fluorometh-cathinone.

(2) Products sold as "kratom", or any part of the plant *Mitragyna Speciosa*, *Mitragyna Speciosa* Korth, *Mitragyna speciosa* leaf extract, *Mitragyna speciosa* extract, whether growing or not, and any compound, manufacture, salt, derivative, capsule, tablet, caplet, gelcap, pill, powder, liquid, vegetative material, mixture, or preparation of the plant, including but not limited to any product containing mitragynine, or 7-hydroxymitragynine.

(3) This includes any *Mitragyna speciose* specific alkaloids, isomers, esters, ethers, salts, and salts of isomers, and ethers, including but not limited to synthetics or natural products which include the active ingredients in kratom, such as:

- a. Ajmalicine (raubasine);

- b. Mitraphylline;
- c. Rhynchophylline;
- d. Mitragynine pseudoindoxyl;
- e. Or other similar product(s) with the active ingredients or with similar structural analogs commonly found in kratom, including:
 - 1. Corynantheidine, 7-Acetoxymitragynine, corynoxin A and B, 3-dehydromitragynin, 3-isocorynantheidin, 3-isopaynanthein, isomitraphyllin, isospeciofolin, isospecionoxin, mitraciliatin, mitrafolin, mitragynalin, mitraphyllin, mitraspecin, paynanthein, speciociliatin, speciofolin, speciogynine, specionoxin, speciophylline, and stipulatin.
- f. This shall include every variation of products sold using the trade name Kratom or similar trade names or descriptors, including, but not limited to: Krathom, Kakuam, Ketum, Kratum, Ithang, Thang, Thom, Biak, Biak-Biak, Mambog, Super K, Life Force K, K-Chill, Herbal Speedball, or K-shot.

(b) If any of the aforementioned substances shall be found in the possession of any person, unless specifically excluded herein, the substances shall be confiscated by law enforcement officials.

(c) It shall not be an offense under subsection (a) above of this section if a person shall be acting at the direction of an authorized agent of the city to enforce or ensure compliance with this law prohibiting the use, possession, purchase, distribution or sale or the attempt to use, possess, purchase, distribute or sale or publicly display for sale the aforementioned substances.

(d) This section shall not apply to any person who shall commit any act described in this section pursuant to the direction or prescription of a duly licensed physician or dentist authorized to direct or prescribe such act. This section shall not apply to the inhalation of anesthesia for a medical or dental purpose which inhalation or anesthesia shall be administered by or under the supervision of a duly licensed physician or dentist.

(e) Any person found to be guilty of violating this section shall be deemed guilty of a misdemeanor and shall be punished by a fine not to exceed \$1,000.00 or imprisoned in the county jail not to exceed six months or both.

SECTION II. REPEALING CLAUSE

All ordinances or parts of ordinances in conflict herein shall be, and the same are hereby repealed.

SECTION III. EFFECTIVE DATE

All ordinances shall take effect and be in force as provided by law. The above ordinance having being first reduced to writing and read and considered section by section at a public meeting of the governing authorities of the Town of Decatur, Mississippi on motion by Alderman Sutphin, seconded by Alderman Johnston, and the roll being called the same by the following votes:

Alderman Cherry voted _____

Alderman Harris voted _____

Alderman Buntyn voted _____

Alderman Johnston voted _____

Alderman Sutphin voted _____

APPROVED, this day the 5th of October, 2021.

MAX ANDERSON, MAYOR

TANYA TANNER, CITY CLERK